Serving Clients Legally Required to Register with Government Agencies

Guidance for workers on how to lawfully and discreetly support individuals required to register with government agencies during disasters.

Typically performed by: *Shelter Site Manager*
Roles likely to support task: *HQ Sheltering Manager, Mass Care Chief, AD Operations*

Considerations

- Like all individuals affected by the disaster, individuals required to register with government agencies must be provided shelter during disasters.
- Those required to register with government agencies may include:
    - Individuals on bail, bond, probation
    - Those with certain communicable diseases
    - Sex offenders

- How and where these persons are sheltered depends on state and local law and the level of potential risk that they pose to others.
- Red Cross procedure balances:
    - Red Cross nondiscriminatory humanitarian mission
    - State and local law
    - The need to safeguard all clients in shelters

    - The unique legal status of persons required to register with authorities
- When the laws of the jurisdiction do not allow an individual to be housed at the shelter, the local government must provide alternative shelter.
- These individuals at a shelter may create additional strain on an already traumatized population. The Shelter Site Manager must handle the situation discretely and may need to provide some separation between the individual(s) and the general population.
- Related **Shelter Activity Standards**:
    - Shelter Operations
    - Shelter Safety and Client Standard

What to do

Seek Guidance as needed

- Shelter Site Managers should request guidance from the HQ Sheltering Manager when they are uncertain of how to handle a client who discloses they must register.

Prepare registration workers

- The Red Cross does not directly ask each person arriving at a shelter if they must register with government, although a sign with the following language may be posted on the registration desk:
    - "*Please inform the registration worker if someone in your household is required by law to register with a state or local government agency for any reason*."

- The Shelter Site Manager ensures all shelter workers, especially those working in the reception and registration areas, know that there are multiple reasons individuals must disclose that they are required by law to register with a state or local government agency.
- The Shelter Site Manager ensures reception/registration workers are trained to discreetly refer these individuals to

the Shelter Site Manager.

Protect privacy of clients who must register with governmental agencies

- The Shelter Site Manager's is responsible for protecting the privacy of these individuals while also protecting other shelter residents.
- Shelter Manager meets privately with those required to register
    - Meet in a private location with this client so that conversations and interactions are confidential and preserve the dignity of the client.

- Determine next actions.
    - **If the client indicates registration is required because of a communicable disease,** refer them to Disaster Health Services who will determine if an alternative sheltering solution should be provided.
    - I**f the client indicates registration is required because of bail, bond, or probation conditions**, the Shelter Site Manager should ensure the client understands shelter rules, advise them to contact their probation officer or point of contact as soon as possible, and return with them to the registration desk to continue registering.
        - Clients in this category should be treated as any other resident in the shelter, but their behavior may be watched more carefully.

    - **If the client indicates they are a sex offender**, advise the client that Red Cross policy requires the notification of local law enforcement to determine whether the client can remain in the shelter.
        - If the client chooses to remain, ask them to confine their activities to a specific area at the shelter that is separate from the general shelter population and under the observation

of a Red Cross worker until law enforcement arrives at the shelter or advises the next steps.
    - The Shelter Site Manager speaks privately with law enforcement upon arrival and provides pertinent information. Law enforcement speaks with the client and, if required, conducts a check into the client's background.
    - If the law permits the registered sex offender to remain in the shelter, the Shelter Site Manager notifies shelter security personnel present in the shelter and the HQ Sheltering Manager.

Collaborate with governmental agencies

- The HQ Sheltering Manager provides Shelter Site Managers with information about local laws regarding sheltering services to sex offenders and others required to register and about any procedures in the local jurisdiction should be followed.
- The Shelter Site Manager must collaborate with law enforcement (whether they are supporting at the shelter or off-site) and ensure appropriate procedures are established and followed.
    - The Shelter Site Manager records appropriate information in the client's record in SCIA as a comment.
    - The registered client should stay in an area where they can be monitored appropriately. Any conversation about this client with staff and appropriate authorities are kept to a minimum and only when necessary to protect safety and privacy.
    - If the client cannot remain in the shelter, law enforcement must collaborate with Red Cross to identify an alternate shelter.

Handling reports of clients suspected to be required to register but did not self-report

Other clients in a shelter may report that a person is present who they believe is required to register with the with government or who they believe may be on a sex offender registry.

- This is common in smaller communities where other clients or law enforcement may recognize a client required to register.
- This can result in a direct confrontation or a report to shelter staff. If this occurs, workers should immediately notify the Shelter Site Manager.
- In these situations:
    - The Shelter Site Manager speaks with the client to understand the situation.
    - To protect the safety of other clients and individuals.
        - A client who are is sex offender; they are escorted to a safe area designated by the Shelter Site Manager.
        - A Red Cross volunteer or employee monitors the client to ensure other clients do not encounter the isolated client.
    - The Shelter Site Manager immediately notifies law enforcement and the HQ Sheltering Manager.

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Resources for Red Cross workers supporting the sheltering activity during readiness and shelter operations

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Posting Signage at Shelters
Instructions for posting signs at key shelter locations to provide information for clients and workers

Maintaining Safety and Health in Shelters